

Draft of Terms of Service

Effective Date: 01-05-2026

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QuotesMill Tech Solutions LLP ("QuotesMill", "we", "us", or "our") provides a WhatsApp-native, AI-assisted quotation and enquiry management platform designed specifically for Indian MSMEs (micro, small, and medium enterprises) including job works, manufacturers, auto ancillary units, packaging vendors, and industrial component suppliers with annual revenues between ₹1-5 crores operating in Delhi NCR industrial belts and similar regions.

This Terms of Service ("Terms") governs your access to and use of our website <https://www.quotesmill.com>, WhatsApp workflows, Progressive Web App (PWA) links, dashboards, APIs, mobile interfaces, and all related services (collectively, the "Services"). By creating an account, connecting your WhatsApp Business account, uploading quotation templates, or using any aspect of the Services, you agree to these Terms on behalf of yourself and the business entity you represent.

1. Service Description

Core Workflow: QuotesMill captures inbound customer enquiries received on your business WhatsApp number, uses AI to comprehend requirements from text, voice notes, and images, validates specifications, shares product catalogs or generates draft quotations using your pre-uploaded Word templates and proforma invoices, routes them for your one-tap approval via PWA links, delivers PDF quotations within 3-5 minutes, sends intelligent follow-ups, generates payment QR codes, and provides real-time conversion dashboards accessible via single sign-on.

Target Users: Indian MSME manufacturers and job works handling 10-15 daily inbound leads requiring rapid quotation responses.

Platform Dependencies: Services operate through WhatsApp Business Platform integrations and require your compliance with Meta's WhatsApp Business Solution Terms, Business Messaging Policy, and 2026 AI Policy updates.

2. Eligibility & Account Requirements

You must:

- Be at least 18 years old and legally capable of entering contracts
- Represent a lawfully operating Indian business entity
- Have authority to bind your business to these Terms
- Own or have rights to all content, templates, catalogs, customer data, and intellectual property you upload or process through QuotesMill
- Maintain an active, compliant WhatsApp Business Account in good standing with Meta
- Comply with all applicable Indian laws including GST, MSME regulations, labor laws, and Digital Personal Data Protection (DPDP) Act, 2023

3. WhatsApp Business Platform Compliance

Your Responsibilities: You are solely responsible for:

- Obtaining explicit opt-in consent from your customers before using QuotesMill to send proactive business-initiated messages outside WhatsApp's 24-hour messaging window
- Using only Meta-approved message templates for notifications, follow-ups, and promotional content
- Maintaining accurate business profile information verified through Meta Business Manager
- Monitoring WhatsApp quality rating and resolving any policy violations promptly
- Ensuring all outbound communications comply with WhatsApp Business Messaging Policy and template guidelines

QuotesMill Role: We act as an Independent Software Vendor (ISV) facilitating your compliance with WhatsApp platform requirements. We do not control your WhatsApp Business Account, message content, customer relationships, or end-customer consent.

4. User Content & Data Ownership

Your Content: You retain all rights to your business data including customer enquiries, quotation templates, pricing, catalogs, negotiation history, and transaction records. QuotesMill claims no ownership rights over Your Content.

Your License to Us: You grant QuotesMill a worldwide, non-exclusive, royalty-free license to host, display, process, analyze, and transmit Your Content solely to provide the Services and maintain platform functionality.

Customer Data: You represent and warrant that you have all necessary rights, consents, and legal bases to process end-customer personal data through QuotesMill and that your use complies with the DPDP Act, 2023 and platform policies.

5. AI-Assisted Processing Disclosures

How AI Works: QuotesMill uses AI models to extract requirements from text, transcribe voice notes, analyze images/drawings, populate quotation templates, suggest follow-up timing, classify lead temperature, and generate workflow recommendations. All outputs require your review and one-tap approval before customer delivery.

No Training on Your Data: We do not use your business conversations, customer enquiries, or quotation data to train third-party or general-purpose AI models.

Human Oversight: You remain fully responsible for commercial accuracy, pricing, tax calculations, legal terms, and final approval of all customer-facing outputs.

6. Service Levels & Availability

Target Availability: We aim for 99.5% monthly uptime excluding scheduled maintenance and force majeure events.

Scheduled Maintenance: We may perform maintenance with advance notice via dashboard/email when feasible.

WhatsApp Dependencies: Service availability depends on WhatsApp platform uptime, which is beyond our control.

No Uptime Guarantees: Except as expressly stated in your paid subscription agreement, we do not guarantee uninterrupted access.

7. Payment Terms

Pricing Plans: Free tier, trial periods, and paid subscriptions available. Current pricing displayed at signup/dashboard.

Billing: Monthly/annual recurring via authorized payment gateways. All fees exclude GST (applicable GST will be added).

Late Payments: Overdue amounts accrue 1.5% monthly interest. We may suspend services for non-payment after 15 days-notice.

Refunds: No refunds except as required by law or specified in subscription terms.

8. Third-Party Services & Limitations

WhatsApp Platform: Subject to [WhatsApp Business Terms](#), [Business Messaging Policy](#), and [2026 AI Policy](#).

Payment Gateways: Subject to their respective terms.

Cloud Infrastructure: AWS/GCP/etc. subject to their terms.

No Liability: We are not responsible for third-party service failures, policy changes, suspensions, or data processing practices.

9. Prohibited Conduct

You may **NOT** use QuotesMill to:

- Send unsolicited commercial messages without explicit opt-in consent
- Violate WhatsApp messaging policies or quality rating requirements
- Process illegal, fraudulent, or harmful content
- Reverse engineer, decompile, or attempt to discover source code
- Use automated means to artificially inflate message volume or quality rating
- Harass customers or send abusive/threatening content
- Upload malware, violate IP rights, or impersonate others

10. Termination & Suspension

By You: Cancel anytime via dashboard settings.

By Us: Immediate suspension/termination for:

- WhatsApp account suspension/blocking
- Quality rating drops to "Medium" or "High" risk
- Payment defaults
- Policy violations

- Legal requirements

Post-Termination: Access revoked. Data export available for 30 days. Thereafter, deleted per retention policy.

11. Intellectual Property

QuotesMill IP: All platform software, AI models, algorithms, templates, designs, documentation, and trademarks remain our exclusive property.

Your IP: You retain rights to Your Content.

Feedback: Suggestions voluntarily provided become our property (royalty-free).

12. Confidentiality

Business Information: Quote templates, pricing, customer lists, and commercial terms shared through QuotesMill remain confidential between you and QuotesMill.

Platform Information: You will not disclose QuotesMill's proprietary workflows, AI capabilities, or technical documentation to competitors.

13. Representations & Warranties

By You: You warrant that your use complies with all laws, you have necessary consents for customer data processing, quotations are commercially accurate, and you will maintain WhatsApp compliance.

By QuotesMill: Services provided as described, with reasonable care and skill. **NO OTHER WARRANTIES.**

14. Limitation of Liability

TO THE MAXIMUM EXTENT PERMITTED BY LAW:

- No liability for indirect, consequential, special, or punitive damages
- Direct damages capped at 12 months' fees paid (or ₹25,000 if no payment made)
- No liability for lost profits, business interruption, data loss, or WhatsApp suspensions
- Force majeure events excused

15. Indemnification

You agree to indemnify QuotesMill against claims arising from:

- Your violation of WhatsApp policies resulting in account suspension
- Customer claims regarding quotation accuracy, pricing, or delivery
- IP infringement from Your Content
- Breach of customer data protection obligations

16. Governing Law & Dispute Resolution

Governing Law: Laws of India, excluding conflict of laws principles.

Jurisdiction: Courts in Gurugram, Haryana have exclusive jurisdiction.

Arbitration Option: Disputes under ₹50 lakhs may be referred to arbitration in Gurugram under Indian Arbitration Act.

17. Changes to Terms

We may update Terms with 30 days-notice via dashboard/email. Continued use constitutes acceptance. Critical changes (billing, termination rights) require explicit opt-in consent.

18. Contact Information

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